CHAPTER 78 Special Provisions for Some States

Articles 371 to 371-J in Part XXI of the constitution contain special provisions for twelve states[1] viz., Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh, Telangana, Sikkim, Mizoram, Arunachal Pradesh, Goa and Karnataka. The intention behind them is to meet the aspirations of the people of backward regions of the states or to protect the cultural and economic interests of the tribal people of the states or to deal with the disturbed law and order condition in some parts of the states or to protect the interests of the local people of the states.

Originally, the constitution did not make any special provisions for these states. They have been incorporated by the various subsequent amendments made in the context of reorganisation of the states or conferment of statehood on the Union Territories.

PROVISIONS FOR MAHARASHTRA AND GUJARAT

Under Article 371, the President is authorised to provide that the Governor of Maharashtra and that of Gujarat would have special responsibility for[2]:

1. the establishment of separate development boards for (i) Vidarbha, Marathwada and the rest of Maharashtra, (ii) Saurashtra, Kutch and the rest of Gujarat;

2. making a provision that a report on the working of these boards would be placed every year before the State Legislative Assembly;

3. the equitable allocation of funds for developmental expenditure over the above-mentioned areas; and

4. an equitable arrangement providing adequate facilities for technical education and vocational training, and adequate employment opportunities in the state services in respect of the above--mentioned areas.

PROVISIONS FOR NAGALAND

Article 371-A makes the following special provisions for Nagaland[3]:

1. The Acts of Parliament relating to the following matters would not apply to Nagaland unless the State Legislative Assembly so decides:

    1. religious or social practices of the Nagas;

    2. Naga customary law and procedure;

    3. administration of civil and criminal justice involving decisions according to Naga customary law; and

    4. ownership and transfer of land and its resources.

2. The Governor of Nagaland shall have special responsibility for law and order in the state so long as internal disturbances caused by the hostile Nagas continue. In the discharge of this responsibility, the Governor, after consulting the Council of Ministers, exercises his/her individual